

25STCV32438 25STCV32438

County: los-angeles

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Case Number: 25STCV32438 Hearing Date: August 7, 2026 Dept: 224

Flexi-Van Leasing, LLC v. Nine Trans, Inc

TENTATIVE RULING

The OSC is CONTINUED to December 8, 2026 at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff's Counsel in the Amount of \$250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default Judgment CRC 3.110(g)-(i) for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

ANALYSIS

FACTS OF THE CASE: Plaintiff Flexi-Van Leasing, LLC seeks default judgment against Defendant Nine Trans, Inc., a California corporation, in the total amount of \$154,127.13, consisting of \$142,325.41 in principal, \$10,021.27 in interest, \$580.45 in costs, and \$1,200.00 in attorney's fees. The Complaint asserts common counts for an agreed balance due for goods and/or services, money due on an open book account, and money due on a written account stated.

PROOF OF SERVICE/DEFAULT: Default previously entered on 3/6/2026.

PRINCIPAL REQUESTED: \$ 142,325.41

INTEREST: \$ 10,021.27

RECOVERABLE COSTS: \$ 580.45

ATTORNEY'S FEES: \$ 1,200.00

TOTAL: \$ 154,127.13

DISCUSSION

Entry of default is not void as the plaintiff did not file an amended complaint after default was entered, and the defendant did not appear before default was entered.

There is no pending motion to vacate default.

Plaintiff has dismissed DOES 1-10, all parties against whom a default judgment is not being sought.

The JC Form CIV-100 was used to request court judgment, item 2 is completed, and the declaration of nonmilitary status requirement is fulfilled because Defendant is a business entity.

A memorandum of costs is verified on the CIV-100 form.

Plaintiff submitted a proposed judgment on a JUD-100 form.

The principal amount requested in the JUD-100 does not exceed the amount demanded in the Complaint.

The 585 declaration of Steve Thomason was submitted in support of default judgment. The ledger matches the requested amount (\$149,267.41 in charges minus a \$6,942.00 credit equals the \$142,325.41 claimed), and every line item on the ledger is backed by an attached invoice.

The Complaint appears to state valid common-count claims. Plaintiff alleges that Defendant agreed to pay \$142,325.41 for goods and/or services rendered, that no part of the balance was paid after demand, and that the same amount is due on an open book account.

The Complaint requests interest at the rate of 10 percent per annum from and after June 22, 2025, and a reasonable attorney's fee under Civil Code section 1717.5.

The attorney's fee request of \$1,200.00 is correctly calculated under Civil Code section 1717.5 for a non-consumer open book account. Section 1717.5(a)(2) caps fees for a non-consumer book account at the lesser of \$1,600 or 25% of the principal (\$35,581.35.) The LASC Local Rule 3.214 schedule amount here would be \$3,313.25 (\$2,890 plus 1% of the excess over \$100,000). Plaintiff's \$1,200.00 request is below both statutory ceilings.

PROBLEMS:

There is a discrepancy in the interest calculation. The interest computation required by CRC 3.1800(a)(3) is provided and mathematically correct. 257 days from 6/22/2025 to 3/6/2026 at approximately \$38.99 per diem (10% per annum on \$142,325.41) equals \$10,021.27. The 10% rate is proper under Civil Code section 3289(b). However, \$3,420.81 of the \$142,325.41 principal consists of Plaintiff's own monthly late-penalty "Interest Charge" invoices ("INT2502," "INT2503," and "INT2504," totaling \$3,420.81.) The supporting invoices describe these amounts as "Interest Charges" or "Late Penalty Charges" calculated as a percentage of overdue invoices. Therefore, the non-interest charges only, after application of the \$6,942.00 credit, should total \$138,904.60 rather than \$142,325.41. Plaintiff calculated an additional 10 percent prejudgment interest on the entire \$142,325.41 number, which includes the \$3,420.81 in previously accrued interest charges. Awarding 10

percent prejudgment interest on the entire \$142,325.41 compounds interest on interest, which the prove-up guidelines direct against.

Plaintiff's declarations concerning the original documents are contradictory. The 585 declaration states that the originals "have become lost and/or unavailable." However, the separately filed "Declaration Re: Lost Documents" states that "[t]he originals of these documents are in Plaintiff's possession." Plaintiff should clarify whether they have the originals.

The attorney's fee declaration's date line is left blank. The interest declaration's date line is also left blank. The e-filing of costs declaration's date line is also left blank. LASC Local Rule 3.201 requires declarations supporting a default judgment to comply with Code of Civil Procedure section 2015.5, which requires a declaration to state its date of execution to be valid.

DISPOSITION:

The OSC is CONTINUED to December 8, 2026 at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff's Counsel in the Amount of \$250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default Judgment CRC 3.110(g)-(i) for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.